This agreement is dated [DATE – leave blank until date final signed/dated counterpart is received]

PARTIES

(1) **THE MAYOR COMMONALTY AND CITIZENS OF THE CITY OF LONDON** of PO Box 270, Guildhall, London, EC2P 2EJ **("City");** and

(2) **THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF BARNET** of North London Business Park, Oakleigh Road South, London N11 1NP ("Barnet"); and

(3) **THE MAYOR AND BURGESS OF THE LONDON BOROUGH OF BRENT** of Brent Civic Centre, Engineers Way, Wembley, Middlesex, HA9 0FJ ("Brent"); and

(4) **THE LONDON BOROUGH OF CAMDEN** of Camden Town Hall, Judd Street, London, WC1H 9JE (**"Camden**"); and

(5) **THE LONDON BOROUGH OF CROYDON** of Bernard Wetherill House, 8 Mint Walk, 4th Floor Annex, Croydon, Surrey, CR0 1EA ("Croydon"); and

(6) **THE COUNCIL OF THE LONDON BOROUGH OF EALING** of Town Hall, New Broadway, Ealing, London, W5 2BY ("Ealing"); and

(7) **THE LONDON BOROUGH OF ENFIELD** of Civic Centre, Silver Street, Enfield, EN1 3XA ("Enfield"); and

(8) **ROYAL BOROUGH OF GREENWICH** of the Woolwich Centre, 35 Wellington Street, Woolwich SE18 6HQ; and

(9) **THE MAYOR AND BURGESS OF THE LONDON BOROUGH OF HAMMERSMITH AND FULHAM** of Town Hall, King Street, Hammersmith, London, W6 9JU ("Hammersmith"); and

(10) **THE LONDON BOROUGH OF HARINGEY** of Civic Centre, High Road, Wood Green, London, N22 8LE (Haringey); and

(11) **THE LONDON BOROUGH OF HILLINGDON** of Civic Centre, High Street, Uxbridge UB8 1UW ("Hillingdon"); and

(12) **THE LONDON BOROUGH OF ISLINGTON** of Islington Town Hall, Upper Street, Islington, N1 2UD ("Islington"); and

(13) **THE MAYOR AND BURGESS OF THE ROYAL BOROUGH OF KENSINGTON AND CHELSEA** of Town Hall, Hornton Street, W8 7NX ("K&C"); and

(14) **THE ROYAL BOROUGH OF KINGSTON UPON THAMES** of Guildhall, High Street, Kingston Upon Thames, KT1 1EU ("Kingston"); and

(15) **THE LONDON BOROUGH OF LAMBETH** of PO Box 734 Winchester SO23 5DG ("Lambeth"); and

(16) **THE LONDON BOROUGH OF LEWISHAM** of Town Hall, Catford London SE6 4RU ("Lewisham"); and

(17) **THE LONDON BOROUGH OF MERTON** of Civic Centre, London Road, Morden, SM4 5DX ("Merton"); and

(18) **THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF REDBRIDGE** of Town Hall, 128-142 High Road, Ilford, IG1 1DD ("Redbridge"); and

(19) **THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF RICHMOND UPON THAMES** of Civic Centre 44 York Street Twickenham Middlesex TW1 3BZ ("Richmond"): and

(20) **THE LONDON BOROUGH OF SOUTHWARK** of PO Box 64529 London SE1P 5LX ("Southwark"); and

(21) **THE LONDON BOROUGH OF SUTTON** of Civic Offices St Nicholas Way, Sutton SM1 1EA ("Sutton"); and

(22) **THE LONDON BOROUGH OF WALTHAM FOREST** of Waltham Forest Town Hall, Forest Road, Walthamstow, E17 4JF ("Waltham Forest"); and

(23) **THE LONDON BOROUGH OF WANDSWORTH** of Town Hall, Wandsworth High Street, London, SW18 2PU ("Wandsworth"); and

(24) **THE LORD MAYOR AND CITIZENS OF THE CITY OF WESTMINSTER COUNCIL** of The Old Marylebone Town Hall, Westminster Council House, 97-113 Marylebone Road, London, NW1 5PT ("Westminster"); and

(25) **HERTFORDSHIRE COUNTY COUNCIL**, County Hall, Pegs Lane, Hertford, SG13 8DE ("Hertfordshire");

BACKGROUND

(A) The Data Sharers agree to share the Personal Data with each other on the terms set out in this agreement.

(B) The relevant Data Sharer agrees to use the Personal Data on the terms set out in this agreement for the purposes of data sharing (Data Sharing).

(C) This is a free-standing agreement that does not incorporate any commercial terms established by the parties under separate commercial arrangements.

AGREED TERMS

1. Interpretation

The following definitions and rules of interpretation apply in this agreement.

1.1 Definitions:

Agreed Purpose: has the meaning given to it in sub-clause 2.5 of this agreement.

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.

Commencement Date: [[DATE] **OR** has the meaning given at the beginning of the agreement].

Criminal Offence Data: means Personal Data relating to criminal convictions and offences or related security measures to be read in accordance with section 11(2) of the Data Protection Act 2018.

Data Protection Legislation: all applicable data protection and privacy legislation in force from time to time in the UK including the UK GDPR; the Data Protection Act 2018 (DPA 2018) (and regulations made thereunder)and the Privacy and Electronic Communications Regulations 2003 (*SI 2003/2426*) as amended and all other legislation and regulatory requirements in force from time to time which apply to a party relating to the use of Personal Data (including, without limitation, the privacy of electronic communications); and the guidance and codes of practice issued by the Information Commissioner or other relevant data protection or supervisory authority and applicable to a party.

Deletion Procedure: has the meaning given to it in sub-clause 8.3 and Schedule 8 to this agreement.

Joint Controller: means where two or more Controllers jointly determine the purposes and means of processing, as referred to in Article 26 of the UK GDPR.

Independent Controller: where the Controllers are data controllers are in their own right and do they act together to decide how personal information should be processed.

Personal Data Breach: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to the Shared Personal Data.

Proof of Concept (PoC): refers to the initial work taking place between the signatories to this agreement and selected third parties which will last for the duration of the Term**.**

Shared Personal Data: the Personal Data and Special Categories of Personal Data and Criminal Offence Data to be shared between the parties under clause 4 of this agreement.

Special Categories of Personal Data: the categories of Personal Data set out in Article 9(1) of the UK GDPR.

Subject Rights Request: the exercise by a Data Subject of his or her rights under the Data Protection Legislation.

Term: this agreement shall continue until the 30th April 2024.

UK GDPR: has the meaning given to it in section 3(10) (as supplemented by section 205(4)) of the DPA 2018.

1.2 **Controller**, **Processor**, **Data Subject, Information Commissioner** and **Personal Data**, **Processing** and **appropriate technical and organisational** measures shall have the meanings given to them in the Data Protection Legislation.

1.3 **Public Authority** shall have the meaning as set out in section 7 of the DPA 2018.

1.4 Clause, Schedule and paragraph headings shall not affect the interpretation of this agreement.

1.5 The Schedules form part of this agreement and shall have effect as if set out in full in the body of this agreement. Any reference to this agreement includes the Schedules.

1.6 Unless the context otherwise requires, words in the singular shall include the plural and in the plural shall include the singular.

1.7 Unless expressly provided otherwise in this agreement, a reference to a legislation or legislative provision shall include all subordinate legislation made from time to time under that legislation or legislative provision.

1.8 References to clauses and Schedules are to the clauses of and Schedules to this agreement and references to paragraphs are to paragraphs of the relevant Schedule.

1.9 Any words following the terms **including**, **include**, **in particular** or **for example** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding these terms.

1.10 In the case of any ambiguity between any provision contained in the body of this agreement and any provision contained in the Schedules or appendices, the provision in the body of this agreement shall take precedence.

1.11 A reference to **writing** or **written** includes email.

1.12 Unless the context otherwise requires the reference to one gender shall include a reference to the other genders.

2. Purpose

2.1 This agreement sets out the framework for the sharing of **Personal Data** when one or more **Controllers** (the **Data Discloser**s) disclose Personal Data to the other parties in their capacity as **Controllers** (the **Data Receivers**). In this agreement the parties are also referred to as Data Sharers (without by that affecting their status as Controllers or Data Receivers pursuant to the Data Protection Legislation).

2.2 The parties are also Joint Controllers of the uploaded data that they will be receiving and transmitting as a result of entering into this agreement.

2.3 The parties are Independent Controllers when the details of the match are processed and then considered for use as part of an investigation by the relevant fraud hub member. Where this occurs fraud hub members should rely on part 3 of the Data Protection Act 2018 for law enforcement processing.

2.4 This agreement also defines the principles and procedures that the parties shall adhere to and the responsibilities the parties owe to each other.

2.5 Each party is a Public Authority and considers this Data Sharing initiative necessary in order to collaborate in relation to their participation in the London Borough Fraud Investigators Group (LBFIG). The aim of the data sharing initiative is to acquire information from third parties of the working practices of agency workers aimed at better understanding the corelation between hours worked and claimed and whether this reflects the data held by the third party employer. It will serve to benefit the signatories to this agreement in providing greater clarity on the work practices of agency staff and enable them to better deal with their respective agency staff as well as providing greater clarity and transparency in the provision of services to the public.

2.6 The parties agree to only process Shared Personal Data, as described in sub-clauses 4.1 to 4.3 and as set out in Schedule 2, for the following purposes:

(a) For fraud prevention purposes;

(b) For protecting the relevant agency bodies' legitimate interests and those of third parties it deals with in this case the relevant customer Councils as part of the London Boroughs Fraud Investigators Group (LBFIG).

(c) Ensuring that public funds are properly accounted as well as discharging the parties' statutory powers under schedule 9 of the Local Audit and Accountability Act 2014.

The parties shall not process Shared Personal Data in a way that is incompatible with the purposes described in this clause (**Agreed Purposes**).

2.7 Each party shall appoint a single point of contact (**SPoC**) who will work together to reach an agreement with regards to any issues arising from the data sharing and to actively improve the effectiveness of the data sharing initiative. The points of contact for each of the parties are at Appendix 1:

3. Compliance with national data protection laws

3.1 Each party must ensure compliance with applicable Data Protection Legislation at all times during the Term of this agreement as set out in clause 5.

3.2 Each party has such valid registrations and or paid such fees as are required by the ICO which, by the time that the data sharing is expected to commence, covers the intended data sharing pursuant to this agreement, unless an exemption applies.

4. Shared Personal Data

4.1 The following types of Personal Data will be shared between the parties during the Term of this agreement:

(a) Forename

(b) Surname

(c) Date of Birth

(d) Address

(e) National Insurance number

(f) Start date of assignment

(g) end date of assignment (as applicable)

4.2 Criminal Offence Data will not be shared between the parties during the Term of this agreement.

4.3 Further detail on the Shared Personal Data as described in sub-clauses 4.1 and 4.2 is set out in Schedule 4 together with any access and processing restrictions as agreed and established by the parties.

4.4 The Shared Personal Data must not be irrelevant or excessive with regard to the Agreed Purposes.

5. Lawful, fair and transparent processing

5.1 Each party shall ensure that it processes the Shared Personal Data fairly and lawfully in accordance with sub-clause 5.2 during the Term of this agreement.

5.2 Each party shall ensure that it has legitimate grounds under the Data Protection Legislation for the processing of Shared Personal Data. Where the legal basis is consent there must be written evidence of the terms of that consent, which is set out in Schedule 5 to this agreement.

5.3 The lawful bases (and conditions or exceptions for processing of any Special Categories of Personal Data or Criminal Offence Data) and the legal power for data sharing are set out in Schedule 12.

5.4 The Data Discloser shall, in respect of Shared Personal Data, ensure that it provides clear and sufficient information to the Data Subjects, in accordance with the Data Protection Legislation, of the purposes for which it will process their personal data, the legal basis for those purposes and such other information as is required by Article 13 of the UK GDPR including:

(a) if Shared Personal Data will be transferred to a third party, that fact and sufficient information about that transfer and the purpose of that transfer to enable the Data Subject to understand the purpose and risks of that transfer; and

(b) if Shared Personal Data will be transferred outside the UK pursuant to sub-clause 5.4(a) of this agreement, that fact and sufficient information about that transfer, the purpose of that transfer and the safeguards put in place by the Controller to enable the Data Subject to understand the purpose and risks of that transfer.

5.5 The Data Receiver undertakes to inform the Data Subjects, in accordance with the Data Protection Legislation, of the purposes for which it will process their personal data, the legal basis for those purposes and such other information as is required by Article 14 of the UK GDPR including:

(a) if Shared Personal Data will be transferred to a third party, that fact and sufficient information about that transfer and the purpose of that transfer to enable the Data Subject to understand the purpose and risks of that transfer; and

(b) if Shared Personal Data will be transferred outside the UK pursuant to sub-clause 5.5(a) of this agreement, that fact and sufficient information about that transfer, the purpose of that transfer and the safeguards put in place by the Controller to enable the Data Subject to understand the purpose and risks of that transfer.

5.4 If, for any reason, one party reasonably considers that the data sharing under this agreement is not lawful, fair or transparent, the SPoC of that first party shall immediately contact the SPoC of the other party or parties to notify them of that concern and consider what action, including suspending any future data sharing, needs to be taken.

6. Data quality

6.1 The parties have developed a reliable means of converting Shared Personal Data to ensure compatibility with each party's respective datasets as set out in Schedule 6.

6.2 The Data Discloser shall ensure that before the Commencement Date, Shared Personal Data is accurate and that it has appropriate internal procedures in place for the Data Receiver to sample Shared Personal Data before the Commencement Date and it will update the same if required before transferring the Shared Personal Data.

6.3 Shared Personal Data must be limited to the Personal Data described in sub-clause 4.1 and Schedule 4 of this agreement.

7. Data subjects' rights

7.1 On receipt of a request from a Data Subject for Shared Personal Data, the party in receipt shall contact the other party or parties to this agreement through the SPoC to notify them of receipt of such a request. The party who receives the request shall have overall responsibility for responding to the request unless more than one party receives an identical or similar request from the same Data Subject. In those circumstances, the relevant SPoCs shall promptly discuss and implement the most effective way of discharging their responsibilities under the Data Protection Legislation to the Data Subject who has made the request(s).

7.2 The parties each agree to provide such assistance as is reasonably required to enable the other party to comply with Subject Rights Requests within the time limits imposed by the Data Protection Legislation.

7.3 The SPoC for each party is responsible for maintaining a record of Subject Rights Requests, the decisions made and any information that was exchanged. Records must include copies of the request for information, details of the data accessed and shared and where relevant, notes of any meeting, correspondence or phone calls relating to the request. The SPoC for each party is detailed in sub-clause 2.6.

8. Data retention and deletion

8.1 The Data Receiver shall not retain or process Shared Personal Data for longer than is necessary to carry out the Agreed Purposes.

8.2 Notwithstanding sub-clause 8.1, parties shall continue to retain Shared Personal Data in accordance with any statutory or regulatory retention periods applicable to them. The parties may put in place common rules for the retention and deletion of Shared Personal Data which shall be set out in Schedule 8.

8.3 The Data Receiver shall ensure that any Shared Personal Data is returned to the Data Discloser or destroyed in accordance with the agreed Deletion Procedure set out in Schedule 8 in the following circumstances:

(a) on termination of the agreement;

(b) on expiry of the Term of the agreement; or

(c) once processing of the Shared Personal Data is no longer necessary for the Agreed Purposes, as set out in sub-clause 5.

8.4 Following the deletion of Shared Personal Data in accordance with sub-clause 8.3, the Data Receiver shall notify the Data Discloser that the Shared Personal Data in question has been deleted in accordance with the Deletion Procedure in Schedule 8 to this agreement.

9. Transfers

9.1 For the purposes of this clause, transfers of Personal Data shall mean any sharing of Personal Data by the Data Receiver with a third party, and shall include, but is not limited to, the following:

(a) subcontracting the processing of Shared Personal Data; and

(b) granting a third party Controller access to the Shared Personal Data.

9.2 If the Data Receiver appoints a third party Processor to process the Shared Personal Data it shall comply with Article 28 of the UK GDPR and shall remain liable to the Data Discloser for the acts and omissions of the Processor.

9.3 The Data Receivers shall not disclose or transfer Shared Personal Data outside the UK.

10. Security and training

10.1 The Data Discloser shall only provide the Shared Personal Data to the Data Receiver by using secure methods as agreed and set out in Schedule 9.

10.2 The parties undertake to have in place throughout the Term appropriate technical and organisational security measures to:

(a) prevent:

(i) unauthorised or unlawful processing of the Shared Personal Data; and

(ii) the accidental loss or destruction of, or damage to, the Shared Personal Data;

(b) ensure a level of security appropriate to:

(i) the harm that might result from the unauthorised or unlawful processing or accidental loss, destruction or damage; and

(ii) the nature of the Shared Personal Data to be protected.

10.3 The level of technical and organisational measures agreed by the parties as appropriate as at the Commencement Date having regard to the state of technological development and the cost of implementing those measures is set out in Schedule 9. The parties shall keep those security measures under review and shall carry out those updates as they agree are appropriate throughout the Term.

10.4 It is the responsibility of each party to ensure that its staff members are appropriately trained to handle and process the Shared Personal Data in accordance with the technical and organisational security measures set out in Schedule 9 together with any other applicable laws and guidance and that those staff members have entered into confidentiality agreements relating to the processing of Personal Data.

10.5 The level, content and regularity of training referred to in sub-clause 10.4 shall be proportionate to the staff members' role, responsibility and frequency with respect to their handling and processing of the Shared Personal Data.

11. Personal data breaches and reporting procedures

11.1 The parties shall each comply with its obligation to report a Personal Data Breach to the Information Commissioner and (where applicable) Data Subjects under Article 33 of the UK GDPR and shall each inform the other party of any Personal Data Breach irrespective of whether there is a requirement to notify the Information Commissioner or Data Subject(s).

11.2 The parties agree to provide reasonable assistance as is necessary to each other to facilitate the handling of any Personal Data Breach in an expeditious and compliant manner.

12. Review and termination of agreement

12.1 Any additional Data Receiver that wishes to be part of this data sharing initiative and agreement shall complete and submit a data sharing request form, as set out in Schedule 10. Each party must then complete and submit a data sharing decision form, as set out in Schedule 11. The consent of every party is required for the additional party to be included into this agreement.

12.2 In the event that a party terminates the agreement or a new Data Receiver joins the agreement in accordance with sub-clause 12.1, an amended and updated version of this agreement will be drafted as soon as practicable and circulated to all other parties.

12.3 The parties shall review the effectiveness of this data sharing initiative every six months and on the addition and removal of a party, having consideration to the aims and purposes set out in sub-clauses 4 and 5. The parties shall continue, amend or terminate the agreement depending on the outcome of this review.

12.4 The review of the effectiveness of the data sharing initiative will involve:

(a) assessing whether the purposes for which the Shared Personal Data is being processed are still the ones listed in sub-clause 5 of and Schedule 2 to this agreement;

(b) assessing whether the Shared Personal Data is still as listed in clause 4 of this agreement;

(c) assessing whether the parties can continue to rely on a lawful basis or a condition or exception under Data Protection Legislation to lawfully share the Shared Personal Data;

(d) assessing whether the legal framework governing data quality, retention, and Data Subjects' rights is being complied with; and

(e) assessing whether Personal Data Breaches involving the Shared Personal Data have been handled in accordance with this agreement and the applicable legal framework; and

(f) assessing whether there is a sufficient number of parties in the agreement to warrant continuing with the PoC.

12.5 Each party reserves its rights to inspect the other party's arrangements for the processing of Shared Personal Data and to terminate the agreement where it considers that the other party is not processing the Shared Personal Data in accordance with this agreement.

12.6 This Data Sharing Agreement will continue in force until terminated by the parties in accordance with clause 12.

13. Resolution of disputes with data subjects or the Supervisory Authority

13.1 For the purposes of this clause, the parties are to be considered jointly liable.

13.2 In the event of a dispute or claim brought by a Data Subject or the Information Commissioner concerning the processing of Shared Personal Data against either or several (including all) parties, the parties will inform each other about any such disputes or claims, and will co-operate with a view to settling them amicably and in a timely fashion.

13.3 The parties agree to respond to any generally available non-binding mediation procedure initiated by a Data Subject or by the Information Commissioner. If they do participate in the proceedings, the parties may elect to do so remotely (such as by telephone or other electronic means). The parties also agree to consider participating in any other arbitration, mediation or other dispute resolution proceedings developed for data protection disputes.

13.4 Each party shall abide by a decision of a competent court in the UK or of the Information Commissioner.

14. Language

14.1 This agreement is drafted in the English language.

14.2 Any notice given under or in connection with this agreement shall be in English. All other documents provided under or in connection with this agreement shall be in English, or accompanied by a certified English translation.

14.3 The English language version of this agreement and any notice or other document relating to this agreement shall prevail if there is a conflict except where the document is a constitutional, statutory or other official document.

15. Warranties

15.1 Each party warrants and undertakes that it will:

(a) process the Shared Personal Data in compliance with all applicable laws, enactments, regulations, orders, standards and other similar instruments that apply to its Personal Data processing operations;

(b) make available on request to the Data Subjects who are third party beneficiaries a copy of this agreement, unless the agreement contains confidential information in which case an extract can be provided;

(c) respond within a reasonable time and as far as reasonably possible to enquiries from the Information Commissioner in relation to the Shared Personal Data;

(d) respond to Subject Rights Requests in accordance with the Data Protection Legislation;

(e) where applicable, maintain registration with the Information Commissioner to process all Shared Personal Data for the Agreed Purpose; and

(f) take all appropriate steps to ensure compliance with the security measures set out in clause 10 above.

15.2 The Data Discloser warrants and undertakes that it is entitled to provide the Shared Personal Data to the Data Receiver and it will ensure that the Shared Personal Data is accurate.

15.3 The Data Receivers warrant and undertake that they will not disclose or transfer the Shared Personal Data to a third party Controller located outside the UK.

15.4 Except as expressly stated in this agreement, all warranties, conditions and terms, whether express or implied by statute, common law or otherwise are hereby excluded to the extent permitted by law.

16. Indemnity

16.1 The Data Disclosers and Data Receivers undertake to indemnify each other and hold each other harmless from any cost, charge, damages, expense or loss which they cause each other as a result of their breach of any of the provisions of this agreement, except to the extent that any such liability is excluded under sub-clause 18.2.

16.2 Indemnification under this agreement is contingent on:

(a) the party(ies) to be indemnified (the **indemnified party(ies)**) promptly notifying the other party(ies) (the **indemnifying party(ies)**) of a claim;

(b) the indemnifying party(ies) having sole control of the defence and settlement of any such claim; and

(c) the indemnified party(ies) providing reasonable co-operation and assistance to the indemnifying party(ies) in defence of that claim.

17. Allocation of cost

Each party shall perform its obligations under this agreement at its own cost.

18. Limitation of liability

18.1 Neither party excludes or limits liability to the other party for:

(a) fraud or fraudulent misrepresentation;

(b) death or personal injury caused by negligence;

(c) a breach of any obligations implied by section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982; or

(d) any matter for which it would be unlawful for the parties to exclude liability.

18.2 Subject to sub-clause 18.1, neither party shall in any circumstances be liable whether in contract, tort (including for negligence and breach of statutory duty however arising), misrepresentation (whether innocent or negligent), restitution or otherwise, for:

(a) any loss (whether direct or indirect) of profits, business, business opportunities, revenue, turnover, reputation or goodwill;

(b) loss (whether direct or indirect) of anticipated savings or wasted expenditure (including management time); or

(c) any loss or liability (whether direct or indirect) under or in relation to any other contract.

18.3 sub-clause 18.2 shall not prevent claims for:

(a) direct financial loss that are not excluded under any of the categories set out in sub-clause 18.2(a); or

(b) tangible property or physical damage.

19. Third party rights

19.1 Except as expressly provided in clause 7 (Data Subjects' rights) and elsewhere in this agreement, a person who is not a party to this agreement shall not have any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement. This does not affect any right or remedy of a third party which exists, or is available, apart from that Act.

19.2 No one other than a party to this agreement, their successors and permitted assignees, shall have any right to enforce any of its terms.

20. Variation

Except for changes to Appendix 1, no variation of this agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

21. Waiver

No failure or delay by a party to exercise any right or remedy provided under this agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of that right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

22. Severance

22.1 If any provision or part-provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this agreement.

22.2 If any provision or part-provision of this agreement is deemed deleted under sub-clause 22.1, the parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

23. Changes to the applicable law

If during the Term the Data Protection Legislation changes in a way that the agreement is no longer adequate for the purpose of governing lawful data sharing exercises, the parties agree that the SPoCs will negotiate in good faith to review the agreement in the light of the new legislation.

24. No partnership or agency

24.1 Nothing in this agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the parties, constitute any party the agent of another party, or authorise any party to make or enter into any commitments for or on behalf of any other party.

24.2 Each party confirms it is acting on its own behalf and not for the benefit of any other person.

25. Entire agreement

25.1 This agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

25.2 Each party acknowledges that in entering into this agreement it does not rely on, and shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this agreement.

25.3 Each party agrees that it shall have no claim for innocent or negligent misrepresentation or negligent misrepresentation based on any statement in this agreement.

26. Further assurance

At its own expense, each party shall, and shall use all reasonable endeavours to procure that any necessary third party shall, execute and deliver such documents and perform such acts as may reasonably be required for the purpose of giving full effect to this agreement.

27. Force majeure

No party shall be in breach of this agreement nor liable for delay in performing, or failure to perform, any of its obligations under this agreement if the delay or failure results from events, circumstances or causes beyond its reasonable control. In those circumstances the time for performance shall be extended by a period equivalent to the period during which performance of the obligation has been delayed or failed to be performed. If the period of delay or non-performance continues for 4 weeks, any party not affected may (after having consulted with the remaining parties) terminate its participation in this agreement by giving 14 days' written notice to the other parties.

28. Rights and remedies

Except as expressly provided in this agreement, the rights and remedies provided under this agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

29. Notice

29.1 Any notice or other communication given to a party by the other party or parties under or in connection with this agreement shall be in writing, addressed to the SPoCs and shall be sent by email to the SPoCs.

29.2 Any notice or communication shall be deemed to have been received at the time of transmission, or if this time falls outside business hours in the place of receipt, when business hours resume.

29.3 In this clause 29, business hours means 9.00 am to 5.00 pm Monday to Friday on a day that is not a public holiday in the place of receipt.

29.4 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

30. Governing law

This agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the laws of England.

31. Jurisdiction

Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims), arising out of or in connection with this agreement or its subject matter or formation.

32, Counterparts

32.1 This agreement may be executed in any number of counterparts, each of which shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement.

32.2 Transmission of the executed signature page of a counterpart of this agreement by email (in PDF, JPEG or other agreed format) shall take effect as the transmission of an executed "wet-ink" counterpart of this agreement. If this method of transmission is adopted, without prejudice to the validity of the agreement thus made, each party shall on request provide the others with the "wet ink" hard copy original of their counterpart.

32.3 No counterpart shall be effective until each party has provided to the others at least one executed counterpart.

This agreement has been entered into on the date stated at the beginning of it.

Signed by:

Signed by ……..…… [insert authority's full name]

By its Director responsible for data protection/information

Name:

Signature:

Date of Signature:

Schedule 1 - Key Legislative Provisions and authoritative guidance

- Statutory powers pursuant to Schedule 9 of the Local Audit and Accountability Act 2014;
- Public functions in relation to accountability around spending of public funds;
- The right to be informed: see Information Commissioner's Office guidance: https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/individual-rights/individual-rights/

Schedule 2 Purpose

(a) For fraud prevention purposes;

(b) For protecting the relevant agency bodies' interests and those of third parties it deals with in this case the relevant customer Councils as part of the London Boroughs Fraud Investigators Group (LBFIG).

(c) Ensuring that public funds are allocated correctly and compliantly and facilitating the discharge of public duties and powers in accordance with schedule 9 of the Local Audit and Accountability Act 2014.

Schedule 3 - Further detail on Shared Personal Data and access and processing restrictions

The data shared for the purpose of this project is detailed below for authorities subject to this Data Sharing Agreement, these can also be found here – 2022-01-28 Payroll Data Spec 22 23 (publishing.service.gov.uk)

(a) Forename

(b) Surname

(c) Date of Birth

(d) Address

(e) National Insurance number

(f) Start date of assignment

(g) End date of assignment (as applicable)

Schedule 4 - Data subject's consent form

N/A

Schedule 5 - Data quality and compatible datasets

Participants will endeavour to ensure that data quality is maintained as far as practicable, and when data owners as advised of any chances, and/or, identify errors.

Compatible datasets that may be used are those used by the Cabinet Office NFI team under agreement, or those open source datasets available for data matching, including, but not limited to:

- Core NFI datasets as set-out here – National Fraud Initiative: public-sector data specifications - GOV.UK (www.gov.uk)

- Trade creditors data specifications
- Personal budgets and social care payments data specification
- Pensions data specification
- Payroll data specification
- Licences data specification
- Housing data specifications
- Electoral Register data specification
- Council Tax data specification
- Transport passes and permits data specification
- Private supported care home residents data specification
- Council Tax Reduction Scheme data specification
- Company check data specification
- Record of deaths
- Companies House company and Director register

Schedule 6 - Types of data that will be released in response to a Subject Rights Request

Data released following a SAR will be subject to the following:

- Local procedures
- Any restrictions/exemptions under the Data Protection Act 2018, and any exemptions under the prevention and detection of crime.
- Data Deletion Schedules

Schedule 7 - Deletion procedure

Data provided for this Proof of Concept will be retained for a period of six months the Cabinet Office for the provision of NFI services for London Fraud Hub members.

Any local criminal/civil investigations will be subject to local data deletion schedules.

Schedule 8 - Appropriate technical and organisational security measures

Data Centres and Transfers

All data will be hosted in secure UK data centres, it will not be transferred outside of the UK, nor will it be used for any other purpose.

Access to the NFI secure site is controlled by LA Key Contacts and is subject to two-factor authentication, with enforced periodic password changes.

Each Fraud Hub member is responsible for the security of the data they control.

For the purposes of the PoC the data will be compartmentalised within the NFI so it is only used for this project, this will secure the integrity of the data and provide for better management information.

Schedule 9 - **Data sharing request form**

For use by the organisation making the request for data sharing

Name of organisation:

Name and position of person requesting data:

Date of request Description of data requested:

Are there any specific arrangements for retention / deletion of data?:

Are there any circumstances in the proposed sharing that might result in a risk to individuals?:

Date(s) provision of data is required:

Schedule 10 - Data sharing decision form

For use by the organisation taking the decision to share data

Name of organisation receiving request to share data:

Name of organisation requesting data:

Name and position of person requesting data:

Date request received:

Purpose of sharing:

Which legal power for sharing applies (if relevant)?:

Are there any specific arrangements for retention/deletion of data?:

What are the security considerations?:

What arrangements are there for complying with individuals' information rights?:

Reason(s) for sharing or not sharing:

Decision taken by (name and position):

Signed:

Dated:

Schedule 11 - Lawful bases and legal power for data sharing

	Data Discloser	Data Recipient
Lawful basis: Article 6(1)(e) of the UK GDPR (Public Interest/Task)	the processing is necessary for the performance of a public task or for official functions.	ditto
Legal power (implied or express in statute)	schedule 9 of the Local Audit and Accountability Act 2014	ditto

Appendix 1

(a) City: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(b) Barnet: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(c) Brent: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(d) Camden: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(e) Croydon: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(f) Ealing: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(g) Enfield: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(h) Greenwich: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(i) Hammersmith: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(j) Haringey: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(k) Hillingdon: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(l) Islington: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(m) K&C: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(n) Kingston: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(o) Lambeth: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(p) Lewisham: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(q) Merton: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(r) Redbridge: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(s) Richmond: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(rt Southwark: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(tu Sutton: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(w) Waltham Forest: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]

(x) Wandsworth: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC])

(y) Westminster: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S

(z) Hertfordshire: [NAME, ROLE, TEAM AND CONTACT DETAILS OF DATA DISCLOSER'S SPOC]